

HOUSE No. 911

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Ciccolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to truth in labeling of recyclable and compostable goods.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Ciccolo</i>	<i>15th Middlesex</i>	<i>1/16/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>3/31/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>5/7/2025</i>

HOUSE No. 911

By Representative Ciccolo of Lexington, a petition (accompanied by bill, House, No. 911) of Michelle L. Ciccolo relative to deceptive or misleading claims regarding recyclability or compostability of certain products and containers. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to truth in labeling of recyclable and compostable goods.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 21O the following
2 chapter:

3 Chapter 21P

4 Section 1: Definitions

5 a. “ASTM” means the American society for testing and materials.

6 b. “Chasing arrows symbol” means an equilateral triangle, formed by three arrows curved
7 at their midpoints, depicting a clockwise path, with a short gap separating the apex of each arrow
8 from the base of the adjacent arrow. “Chasing arrows symbol” includes any similar symbols
9 likely to be interpreted by a consumer as an implication of recyclability, including, but not
10 limited to, one or more arrows arranged in a circular pattern or around a globe.

c. “Container” means any bottle, can, jar, case, package or other receptacle intended to hold, carry, or enclose fluids, food items or nonfood products.

d. “Department” means the Department of Environmental Protection

e. “EN” means the technical specifications and guidelines developed by the European Committee for Standardization.

f. “ISO” means the International Organization for Standardization.

g. “Label” is a written, printed, or graphic displayed on a product’s immediate container or wrapper that provides information about the product.

h. “Packaging material” means any package or container, regardless of recyclability or compostability, used for the containment, protection, delivery, presentation or distribution of a product to a consumer.

i. “Perfluoroalkyl and polyfluoroalkyl substances” or “PFAS” means substances that include any member of the class of fluorinated organic chemicals containing at least one fully fluorinated carbon atom.

j. “Plastic” means a synthetic material made from fossil fuel or organic-based polymers, such as polyethylene, polystyrene, polypropylene and polycarbonate, that can be molded or blown into specific shapes.

k. “Plastic packaging material” means packaging material that is composed predominantly of plastic.

1. “Producer” means the following person responsible for compliance under this chapter for a product, sold, offered for sale, or distributed in or into the state: “Resin identification code” means a molded, imprinted or raised label on a plastic container or plastic packaging material indicating the type of plastic resin used to produce the container or packaging material.

(1) If the product is sold under the manufacturer's own brand or lacks identification of a brand, the producer is the person who manufactures the products;

(2) If the product is manufactured by a person other than the brand owners, the producer is the person that is the licensee of the brand or trademark under which a product is used in a commercial enterprise, sold, offered for sale, or distributed in or into the state, whether or not the trademark is registered in the state, unless the manufacturer or brand owner of the product has agreed to accept responsibility under this chapter; or

(3) If there is no person described in this subsection over whom the state can constitutionally exercise jurisdiction, the producer is the person who imports or distributes the product in or into the state.

m. “Resin identification code” means a molded, imprinted or raised label on a plastic container or plastic packaging material indicating the type of plastic resin used to produce the container or packaging material.

Section 2: Prohibition on Deceptive or Misleading Claims Regarding Recyclability of Products and Packaging

Except as otherwise provided in this section, beginning 1 year after the effective date of this act, a producer may not distribute, sell, or offer for sale in the State any container, or any

product contained in, protected by, delivered in, presented in or distributed using packaging material for which a deceptive or misleading claim about the recyclability of the container or packaging material is made.

A container or packaging material is deemed to be recyclable in the State if:

(1) The material type and form are collected for recycling by recycling programs for jurisdictions that collectively encompass at least 60 percent of the population of the State;

(2) The material type and form are sorted into defined streams for recycling processes by large volume transfer or processing facilities that process materials that collectively serve at least 60 percent of recycling programs statewide, with the aforementioned defined streams sent to and reclaimed at the reclaiming facility consistent with the requirements of the Basel Convention on the Control of Transboundary Movements of Hazardous Waste and their Disposal;

(3) It is designed to ensure recyclability and does not include any components, inks, adhesives, or labels that prevent the recyclability of the product or packaging;

(4) It does not contain any intentionally added chemical that impacts recyclability;

(5) It does not contain perfluoroalkyl or polyfluoroalkyl substances or PFAS;

Notwithstanding the requirements of this section, a container or packaging is considered recyclable in the state if the product or packaging has an acceptable demonstrated recycling rate as defined by the department of environmental protection through regulations the department shall promulgate considering in its rulemaking whether or not the materials of the product or packaging are routinely sorted and aggregated in the state and reprocessed into new products or packaging.

The provisions of this section shall not apply to:

The use of a chasing arrows symbol in combination with a clearly visible line placed at a 45-degree angle over the chasing arrow symbol to convey that an item is not recyclable; or The use of a resin identification code placed inside a solid equilateral triangle.

Section 3: Prohibition on Deceptive or Misleading Claims Regarding Compostability of Certain Products and Containers

Except as otherwise provided in this section, beginning 1 year after the effective date of this act, a producer may not distribute, sell, or offer for sale in the State any container or any product contained in, protected by, delivered in, presented in, or distributed using packaging material for which a deceptive or misleading claim about the compostability of the container or packaging material is made.

A container, product, or packaging is considered compostable in the state if it meets at least one of the following standard specifications.

- (1) ASTM standard specification D6400;
- (2) ASTM standard specification D6868;
- (3) ASTM standard specification D8410;
- (4) ISO standard specification 17088;
- (5) EN standard specification 13432;
- (6) A standard specification that is substantially similar to those provided above, as determined by the department; or is composed only of raw or untreated wood, which includes

renewable wood, or a fiber-based substrate that contains no plastic, plastic polymer or wax additives, or plastic wax coatings.

Section 4: Prohibition on the Use of Chasing Arrows Symbol for Compostable Products

A producer of packaging that is compostable, shall not market or advertise such packaging using a chasing arrows symbol, resin identification code, or recycling symbol of any form.

Section 5: Labeling Requirements for Compostable Products

A compostable product or packaging must feature a label that:

(1) Meets industry standards for being distributable upon quick inspection in both public sorting areas and in processing facilities. (2) Uses a logo indicating the product has been certified by a recognized third-party independent verification body as meeting the applicable standard specification; (3) Displays the words “compostable,” where possible, to indicate the product has been tested by a recognized third-party independent body and meets the applicable standard specification; and (4) Uses green, beige, or brown labeling, color stripping, or other green, beige, or brown symbols, colors, or tinting, marks, or design patterns that help differentiate compostable items from non-compostable items. (5) Distinguishes between commercial and residential composting as may be further defined by the department.

Section 6: Prohibition on the Use of Certain Terms on Plastic Products and Packaging

No person may sell, offer for sale, or distribute for use in the State a plastic container or plastic packaging material that is labeled with the terms “biodegradable,” “degradable,” “decomposable,” “oxo-degradable,” or any similar form of these terms, or in any way impact that

113 the plastic product or packaging will break down, fragment, biodegrade, or decompose in a
114 landfill or other environment.

115 Section 7: Rulemaking

116 The Department shall adopt regulations to administer and enforce the provisions of this
117 act.

118 Section 8: Enforcement

119 The Department is responsible for administering and enforcing the requirements of this
120 act.

121 The Department shall issue a written warning to any person who violates the
122 requirements of this act, or any rule or regulation adopted pursuant to it.

123 After receiving a warning, a person who subsequently violates the requirements of this
124 act, or any rule or regulation adopted pursuant to it, shall be subject to a civil penalty of:

125 No more than \$10,000 dollars for the second violation;

126 No more than \$20,000 dollars for the third violation; and

127 No more than \$40,000 dollars for the fourth violation.

128 Each day a violation occurs is considered a separate violation.